

WHITE, J., concurring in judgment

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pendence without which no judiciary can be either respectable or useful. . . ."

See also cases discussed in *Yaselli v. Goff*, 12 F. 2d 396, 399-401 (CA2 1926), summarily aff'd, 275 U. S. 503 (1927).

The majority articulates other adverse consequences which may result from permitting suits to be maintained against public officials. Such suits may expose the official to an unjust damage award, *ante*, at 425; such suits will be expensive to defend even if the official prevails and will take the official's time away from his job, *ante*, at 425; and the liability of a prosecutor for unconstitutional behavior might induce a federal court in a habeas corpus proceeding to deny a valid constitutional claim in order to protect the prosecutor, *ante*, at 427. However, these adverse consequences are present with respect to suits against policemen, school teachers, and other executives, and have never before been thought sufficient to immunize an official absolutely no matter how outrageous his conduct. Indeed, these reasons are present with respect to suits against all state officials³ and must necessarily have been rejected by Congress as a basis for absolute immunity under 42 U. S. C. § 1983, for its en-

³ Even the risk that decisions in habeas corpus proceedings will be skewed is applicable in the case of policemen; and if it supplies a sufficient reason to extend absolute immunity to prosecutors, it should have been a sufficient reason to extend such immunity to policemen. Indeed, it is fair to say that far more habeas corpus petitions turn on the constitutionality of action taken by policemen than turn on the constitutionality of action taken by prosecutors. We simply rely on the ability of federal judges correctly to apply the law to the facts with the knowledge that the overturning of a conviction on constitutional grounds hardly dooms the official in question to payment of a damage award in light of the qualified immunity which he possesses, and the inapplicability of the *res judicata* doctrine, *ante*, at 428 n. 27.